

Raja Yadav @ Raja Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 February 2020 · Writ-C No. 4087 of 2020 · Writ-C No. 4087 of 2020 · **Objections to provisional assessment directed; recovery to abide; coercive steps stayed.**

HEADNOTE

On a challenge to a recovery citation of Rs 2 lakh as issued without Supply Code, 2005 and Electricity Act process, the licensee produced a notice of provisional assessment after checking and meter replacement. The Court directed the consumer to file objection to that notice within three weeks and respondent no. 3 to dispose of it by a reasoned speaking order within four weeks; the recovery citation would abide that final order, and no coercive measure was to be taken in the meantime.

FACTUAL SUMMARY

The petitioner challenged a recovery citation dated 7 December 2019 for Rs 2 lakh, alleging that the respondents had proceeded to recover without conducting proceedings under the Electricity Supply Code, 2005 and the Electricity Act. On the Court's query, counsel for the electricity department stated that the connection had been checked on 21 May 2019, a new meter installed on 17 June 2019, and a notice of provisional assessment issued calling for a reply; copies of those documents were handed over in Court.

HOLDING-UNITS

HOLDING-UNIT · EA2003::126

provisional-assessment-objection-recovery

HOLDING

Where a recovery citation is challenged as having been issued without Supply Code, 2005 and Electricity Act process, and the licensee produces a notice of provisional assessment calling for a reply, the consumer is to file objection to that notice and the assessing officer is to dispose of it by a reasoned speaking order; the recovery citation abides that final order and no coercive measure is to be taken in the meantime. ¶ 1

PRINCIPLE TAGS

provisional-assessment-objection-recovery-abides The Rs 2 lakh recovery citation was not quashed on merits. The consumer was put to objection on the licensee's provisional assessment notice, with the citation to abide the speaking final order and coercive recovery stayed in the meantime. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 7.12.2019 WAS ISSUED WITHOUT SUPPLY CODE, 2005 OR ELECTRICITY ACT PROCEDURE

Not examined once the licensee produced the notice of provisional assessment. ¶ 1

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT AND THE RS 2 LAKH DEMAND

Left to respondent no. 3 on the consumer's objections. ¶ 1